

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 06/09/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. **If oral argument is requested, the contesting party must specify the issues to be argued.**

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRIV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L23-05161

CASE NAME: DISCOVER BANK VS. JOHN DATOR

*HEARING ON MOTION IN RE: TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT
PURSUANT TO STIPULATION

FILED BY: DISCOVER BANK

TENTATIVE RULING:

Background

Plaintiff filed a Motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

Mail service was completed at an address for defense counsel.

This Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$9,167.03, plus costs, and less any credits for payments received.

A notice of conditional settlement was filed on 12/31/24, but no party subsequently filed a request for dismissal. Thus, this case has not been dismissed.

The Defendant made payments of \$1,740.

Costs are \$292. A memo on costs was filed 11/20/25.

Disposition

Plaintiff's Motion is granted to the extent it calls for the entry of judgment under the 664.6 agreement. There was no dismissal, so there's nothing to vacate.

Judgment will be entered in the amount of \$7,719.03.

Plaintiff shall prepare and submit a proposed order and judgment and serve notice of entry of same on defendant.

2. 9:00 AM CASE NUMBER: L24-07531

CASE NAME: CAPITAL ONE N.A. VS. MAHKAYLA HENRY

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address at which Defendant was served with process through substitute service. Defendant has made no effort to indicate that the service of process was invalid. Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$4,506.71, plus costs, less any credits for payments received.

Costs are \$583.61. A memo on costs was filed with the court.